

INSIDE THE INDUSTRY

ONE LINE IN NAR'S NEW BROKER GUIDANCE.

Read it before you take another listing off the MLS.
Most agents never will.

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Keeping It Real Podcast

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**NAR DIDN'T BAN
THE PRIVATE
LISTING. IT MADE
YOUR SELLER SIGN
FOR IT.**

That signature is the whole conversation now.

NAR'S CHIEF MARKETING OFFICER SENT BROKERS NEW GUIDANCE THIS WEEK.

Bennett Richardson's email landed in my inbox. Real Estate News confirmed the resources publicly on July 3, 2026. This isn't a rumor. It's NAR's own policy team.

CLEAR COOPERATION IS STILL THE RULE.

Publicly market a listing, and it has to hit the MLS within one business day. NAR kept that.

TWO PATHS STILL LET A SELLER STAY OFF THE MLS.

The office exclusive, and delayed marketing. NAR kept both. But the price of using either one just went up.

YOU NOW HAVE TO FILE IT WITH THE MLS AND GET YOUR SELLER TO SIGN A CERTIFICATION.

Two things on it: your professional relationship to them, and a written acknowledgement that they understand the MLS exposure they're giving up.

THIS DROPS THE SAME MONTH A CHICAGO COURTROOM PUT PRIVATE LISTINGS ON EVERY HEADLINE IN THE COUNTRY.

NAR's answer isn't a ban. It's a signature. That's the line between a seller who chose to skip the MLS and a seller who got talked out of it.

HOW TO HANDLE THE OFFICE-EXCLUSIVE CONVERSATION THE COMPLIANT WAY:

- 1** Don't slide the certification across the table at the end for a quick signature.
- 2** Walk your seller through it at the start of the listing appointment.
- 3** Name the exposure they're giving up. More buyers on the MLS means more bids.
- 4** Get the signature. It protects your seller and it protects you.

THE TAKEAWAY

**NEXT
OFFICE-EXCLUSIVE
CONVERSATION,
LEAD WITH THE
CERTIFICATION
INSTEAD OF
BURYING IT.**

The agent who documents the choice is protected.
The agent who skips it now owns it.